

2025 Standard Specifications for Highway Construction

BRITISH COLUMBIA

Ministry of Transportation and Transit

Volume 1 of 2

Adopted February 1, 2025

BRITISH COLUMBIA
Ministry of Transportation and Transit

2025
STANDARD SPECIFICATIONS FOR HIGHWAY CONSTRUCTION

VOLUME 1

Adopted February 1, 2025

Construction and Maintenance Branch
Ministry of Transportation and Transit

Cover Photograph provided by TranBC Flickr site
https://www.flickr.com/photos/tranbc/53397215642/in/album-72177720304074161
Nicomen Bridges - Temporary bridge construction after 2021 atmospheric river event
Trans-Canada Hwy #1, approximately 18 km north of Lytton, BC
50° 16' 5.86" N; 121° 24' 4.62" W

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NOTICE TO USERS

Generally, text significantly changed or added since the 2025 edition is shown with single underlining and a vertical bar in the margin; moved text is double underlined; deletions are marked only by the vertical change bars. Not all changes are marked. Minor corrections such as typos have not been marked.

Extensively modified Sections are watermarked as "Revised Section"; new Sections are watermarked "New Section", and neither have updates marked.

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Free PDF versions of the current and historical editions of these specifications are available for downloading at:

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None

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None.

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SECTION 000

NOTES

000.01 Ministry Names – Within these Standard Specifications, many Ministry names have been genericized, focusing on the relevant area of responsibility rather than the current, full Ministry name. As an example for an issue related to mine safety, the current "Ministry of Mining and Critical Minerals" is referenced as the "Ministry of Mines".

A list of current Ministries may be found at:

https://www2.gov.bc.ca/gov/content/governments/organizational-structure/ministries-organizations/ministries

Where a provincial Act is referenced, the Minister responsible for that Act can be found under the "Acts/Ministers' Responsibilities" link on the BC Laws webpage:

https://www.bclaws.gov.bc.ca/

Referenced publications maintain the name of the Ministry as shown within the document itself.

Upon request by the Contractor, the Ministry Representative will provide clarification as to which Ministry is currently responsible for any particular reference.

000.02 Cross References Abbreviations and Inclusions – To facilitate the cross referencing among the components of each of the Standard Specification, Tender Document Package, the Contract Document Package and the Contract, unless the context by implication requires otherwise, the following is used:

000.02.01 Shorthand Referencing – A reference to XX#.## means to the article, section, subsection, or paragraph #.## of document XX, where "XX" refers to the following, as the case may be:

CT means Conditions of Tender;

GC means General Conditions;

SCT means Invitation to Tender – Supplemental Conditions of Tender;

SGC means Supplemental General Conditions;

SP means Special Provisions; and

SS means Standard Specifications for Highway Construction.

000.02.02 Inclusive of Subclause – A reference to a higher-level clause includes a reference to any subclauses (e.g. XX#.00 includes XX#.01, XX#.02 etc.; XX#.01 includes XX#.01(a), XX#.01(b)(i), etc.).

000.02.03 Statutes – A reference to a statute, whether or not that statute has been defined, means a statute of the Province of British Columbia unless otherwise stated and includes every amendment to it, every regulation made under it and any enactment passed in substitution therefore or in replacement thereof.

000.03 Hyperlinks – In the PDF version of this document, many reference sources have been hyperlinked (such as the reference in SS 000.01 above) and will show as blue underlined text.

Clicking on the link will open the resource in your web browser.

Generally, links to test methods and specification organizations (like CSA or ASTM) will take you to a site where you can purchase and download the associated specifications; a link to a Ministry document, and some others, within the text of a Section should take you to a website where you can download the referenced document free of charge.

Note: Due to MS Word® prioritizing "Track Changes" formatting over other formatting, some newly inserted hyperlinks are not shown in blue. If there is underlined black text that looks like it might warrant a hyperlink, hover your mouse over it to see if it does have an embedded link.

000.03.01 Disclaimer – Any information, including statutes and regulations, that may be found by accessing URLs or websites (including via hyperlinks) in these Standard Specifications are not the official versions and may not be accurate, complete, current or reliable.

000.04 General Condition (GC) References – Where these Standard Specifications make a reference to a General Condition (e.g. GC 38.00 Changes to Work), that reference is to the applicable clause of the Ministry's Major Works General Conditions.

Where the Work is being performed under a different set of terms and conditions (e.g. the Minor Works General Conditions), the reference shall be read as being to the most comparable term and condition of the actual Contract.

In the event there is uncertainty in determining the applicable clause, the Ministry Representative will determine how the reference is to be interpreted.

000.05 Engineer of Record (EoR) / Professional of Record (PoR) – These two terms are used, essentially interchangeably, within these Standard Specifications and are based on the Association of Professional Engineers and Geoscientists of the Province of British Columbia's (APEGBC) use and recent terminology change from EoR to PoR.

Whereas APEGBC is concerned only with their registrants, including Professional Engineers and Geoscientists, usage in these Standard Specifications may also capture other registered professions such as Registered Professional

Foresters (RPF), Registered Professional Biologists (RPBio), and other disciplines, as appropriate to the circumstances.

Each EoR/PoR is professionally responsible to the Ministry for the works they have designed or field-reviewed.

SECTION 101
QUALITY MANAGEMENT

101.01 General – All work on Ministry projects shall be undertaken through a total quality management process, utilizing Ministry, Contractor and third-party resources, as necessary.

The Contractor shall have a quality management program and staff in place and provide the Ministry with documented assurance that any product meets all applicable requirements of the Contract, at any hold point or witness point (as defined in SS 145.12) and prior to issuance of the Completion Certificate.

101.01.01 Quality Management Definitions – The Ministry accepts the following definitions associated with Quality Management:

(a) Quality Control (QC): The process of checking specific product or service results to determine if they comply with relevant quality standards and identifying ways to eliminate causes of unsatisfactory product or service performance.

(b) Quality Assurance (QA): The process of evaluating overall product or service, by persons or companies independent of those doing the Work, on a regular basis to provide confidence that the product or service satisfies the relevant quality standards.

(c) Quality Audit (QAudit): Review by a party independent of QC and QA, to provide confidence that the QC and QA processes and resulting products satisfy the contractual requirements.

(d) Quality Management (QM): The compendium of quality control, assurance and audit provided by a party

101.01.02 QM Program Components – The quality management program has two key components as follows:

- Quality Control – the Contractor's responsibility
- Quality Assurance – the Ministry's responsibility

Each component of the program must address materials, processes, products, submittals to the Ministry, and documentation, utilizing both construction inspection measures and standard test methodologies where appropriate.

The Contractor shall provide unrestricted access to all Quality Control operations and documentation produced by or on behalf of the Contractor and shall allow the Ministry full access at any time during working hours.

The Ministry Representative will review the Contractor's performance of the Work and determine the acceptability of the Work based on the Ministry's Quality Assurance results and, where deemed appropriate by the Ministry Representative, supplemented by the Contractor's Quality Control results.

Work failing to meet the conditions of the Contract will be considered Unacceptable Work.

The Ministry Representative may consider all Work from the last acceptable Quality Assurance testing as Unacceptable Work. The Contractor will not be entitled to payment for Work that lacks the appropriate Quality Control documentation, verified by the QC Manager, as required by the Contract.

The Contractor shall implement a well-coordinated approach to all operations related to the Work and shall organize its team and operations in keeping with the goal of doing things right the first time.

101.02 Quality Control Plan (QC Plan)

101.02.01 QC Plan General Requirements – The Contractor shall be responsible for all Quality Control during the performance of the Work. QC work includes monitoring, inspecting and testing the means, methods, materials, workmanship, processes and products of all aspects of the Work as necessary to ensure conformance with the Contract.

The Contractor shall prepare, and submit to the Ministry Representative, a Quality Control Plan (QC Plan) in accordance with the Contract provisions, including SS 101.02.03.

(a) ISO 9001 – The QC Plan shall be structured around the ISO 9001 program although ISO registration is not required, and clearly demonstrate the Contractor's understanding and commitment to ISO's principles of quality management:

- **(i)** Customer focus
- **(ii)** Leadership
- **(iii)** Engagement of people
- **(iv)** Process approach
- **(v)** Continual improvement
- **(vi)** Evidence-based decision-making
- **(vii)** Relationship Management.

(b) The QC Plan must also include sections detailing the Contractor's methodology associated with each of the above principles.

(c) No Work shall be undertaken on any element of Work (including payment Items and incidental Work, or submittals for review) for which there are QC Plan submission requirements until the Ministry has

accepted the base portion of the QC Plan and the specific details for that element of Work.

(d) Subject to the submission requirements outlined in SS 101.02.03, the QC Plan is required to cover the Work in its entirety, including without limitation all materials the Contractor and Subcontractors are supplying, and all items and phases of construction on the Project.

(e) The plan may be operated wholly or in part by a qualified Subcontractor or an independent agency/organization. However, the plan's administration (including conformance with the plan and its modifications) and the quality of the Work remain the responsibility of the Contractor.

(f) The Contractor's QC program and the Work shall be undertaken in accordance with the QC Plan and shall be well managed, with testing results representative of actual operations. Results will be reported accurately and in a timely manner.

(g) The Contractor shall also ensure that all workers are familiar with the Quality Management Plans, its goals, and their role under it, as well as with the Contract specifications associated with the Work they are to undertake.

101.02.02 QC Plan Quality Control Staff and Equipment Submission Requirements – The Contractor shall provide all resources and take all actions necessary to ensure:

(a) **Inspection and Testing Staff –** Provision of sufficient inspection or testing staff, with adequate equipment and technical support to perform all Quality Control functions in an accurate and timely manner.

(i) That QC staff perform only inspections and tests for which they are qualified.

(ii) All testing equipment is calibrated, properly maintained, and in good operating condition.

(iii) All testing and inspection is performed in accordance with appropriate standards of the Contract.

(iv) Submission to the Ministry Representative, within twenty-four (24) hours, of daily reports for all tests and inspections that indicate non-conformance of the material being tested.

(v) Production, within forty-eight (48) hours, of daily reports for all tests and inspections that indicate conformance of the material being tested and the availability of back-up documentation to substantiate test results when required.

(vi) Organization, compilation and submission of all project QC documentation within 14 days of the last day on Site and as a condition precedent to the issuance of the Completion Certificate.

(b) **Quality Control Manager –** The Contractor shall designate one person as the Quality Control Manager (QC Manager) who shall be responsible for the implementation of the QC Plan.

(i) The QC Manager shall be:

(A) a qualified Professional Engineer,

(B) a Certified Engineering Technician,

(C) an Applied Science Technologist, or

(D) another qualified individual,

and shall have extensive relevant experience in quality management, and must demonstrate knowledge, skills and abilities acceptable to the Ministry Representative. Any nomination of a Quality Manager or designate shall be accompanied by a full resumé of the nominee.

(ii) The QC Manager shall be at "arms-length" from the productivity part of the Contractor's organization and specifically shall not be the Project Manager or the Project Superintendent. On Minor Works contracts, this requirement will, upon request by the Contractor and where the candidate is deemed acceptable under the foregoing paragraph, generally be waived by the Ministry Representative.

(iii) The Quality Manager is not entitled to waive or vary any requirement of the Contract, but may seek authorization of any proposed variance from the Ministry Representative.

(iv) The QC Manager, or a designated replacement acceptable to the Ministry Representative empowered and able to perform all of the QC Manager's relevant duties, shall remain on Site at all times the Contractor is performing Work which must be tested or inspected in-process, and must be readily accessible and able to return when off-Site.

(c) **Other Contractor Staff –** The Ministry recognizes the Contractor's Project Manager and Superintendent as the personnel responsible for making the product meet the contractual requirements, but the QC Manager's duties include being responsible to measure conformance and to ensure that quality is not compromised by production pressures.

(d) **QC Plan Content –** The QC Plan will include the following information:

(i) the name of the QC Manager and qualifications establishing a proven capability to provide the specific services required for the Project;

(ii) the name of QC testing agencies and their proven capability to provide the specific services required for the Project;

(iii) a listing of QC staff (including names, qualifications and relevant experience) and their assigned roles and work scheduling in performing QC duties;

(iv) a list of testing equipment to be used for the Work;

(v) an organizational chart showing details of the flow of information, "hold" points, rectification of deficiencies and other relationships and responsibilities necessary to assure Project quality requirements are met;

(vi) a description of how the QC staff are allocated to Project requirements, the tasks assigned to each, and how their work will be coordinated;

(vii) a commitment to have every submission to the Ministry seeking review or approval to be accompanied by a QC Checksheet, showing that:

(A) the contents of the submission have been reviewed by QC staff and signed off by the QC Manager; and

(B) the submission, including any associated information, is

(1) fully compliant with all requirements of the Contract, or

(2) identifies any non-conformances and provides an internal NCR, complete with proposed corrective action, or

(3) requests a variance from the Contract provisions including any proposed revised standards to be applicable to the Work and any compensation offered to the Ministry should the variance be approved.

(e) **QC Plan Implementation –** Without limitation, the Contractor's QC Manager shall:

(i) implement the Contractor's QC Plan;

(ii) ensure all submissions to the Ministry are accompanied by a check sheet pursuant to SS 101.02.02(d)(vii):

(iii) be responsible for measuring conformance with all aspects of the contract quality;

(iv) stop work when materials, product, processes or submittals are deficient;

(v) develop inspection and testing plans for each element of Work;

(vi) develop acceptance/non-acceptance reports and quality control checklists for each element of Work in sufficient detail to gauge conformance with all significant contractual requirements;

(vii) undertake quality review activities on the Work and Quality Control activities delegated to any Sub-contractors to ensure that their work is compliant with all terms of the Contract.

(viii) ensure the requirements for quality management (including an overview of how the QC Plan operates, the worker's role in it, contractual specifications for the Work, and work procedures) are known to, understood by, and adhered to by all workers on the Site;

(ix) ensure that all QC checklists are signed-off by competent and responsible parties as close to the actual work as appropriate to the nature of the Work (e.g. by the actual worker or a foreperson for most work; by a Professional Engineer for false work erection; etc.)

(x) review, sign, and be responsible for all reports (materials and testing results);

(xi) consult with field inspectors regarding materials and testing issues;

(xii) receive notification by inspectors regarding deficiencies and ensure re-testing or rejection;

(xiii) provide monthly summary reports on testing and inspection results. Weekly summary reports may be required if the Ministry Representative finds the Contractor's QC to be lacking.

(xiv) initiate the non-conformance process when materials or product do not meet the required specifications and, inform the Ministry Representative of such non-conformance;

(xv) consult with the Contractor Representative and initiate corrective action on non-conformance;

(xvi) respond to each Non-Conformance Report (NCR) issued by the Ministry Representative within the time specified in the NCR;

(xvii) schedule testing and inspection services in coordination with the Contractor's superintendent and forepersons;

(xviii) monitor QC testing and inspection procedures including those of the Subcontractors;

(xix) work directly with the Ministry Representative on matters related to QC;

(xx) ensure required approvals and permits from the Ministry Representative and others are obtained as and when required;

- verify that all testing equipment is properly maintained and kept in good working order;
- keep an organized filing system to ensure that quality records are easily accessible so that auditors can obtain necessary information;

- review issued for construction drawings, calculations, and shop drawings and ensure that all concerned Contractor staff have current versions of documents applicable to their part of the Work;
- notify the Ministry Representative of any changes in survey layout, location, line, grade, etc., for approval; notify the company principles of any issues that compromise the integrity or function of the Quality Management System, and
- provide an auditable trail for survey computations to the Ministry Representative.

101.02.03 QC Plan Submission Requirements (Contract–Specific) – Each QC Plan submission to the Ministry shall be accompanied by a QC checklist prepared by the Contractor, as specified in SS 101.02.02(d)(vii), demonstrating that the submission has been checked for compliance with contractual requirements.

(a) Full Submission – Unless otherwise specified in the Special Provisions, the Contractor's QC plan shall provide details of the means, methods, and frequencies of Quality Control measures for all elements of Work (whether payment Items or incidental) in the Contract.

(b) Partial Submission – On projects considered by the Ministry to be of low complexity and/or risk, and only where explicitly invoked by the Special Provisions, the Ministry will accept a partial QC Plan submission.

Notwithstanding any such reduced submission requirements, the Contractor remains responsible for QC for all aspects of the Work.

(i) The Contractor's partial QC Plan submission to the Ministry Representative is only required to address the details of the following types of Work:

(A) Traffic Management

(B) Survey/layout

(C) Materials incorporated into the Work (concrete barrier, culverts, filter cloth, lock-blocks, etc.)

(D) Compaction (subgrade, embankments, granular aggregates, culvert backfill, etc.)

(E) Aggregate gradation

(F) Plus any other elements identified in the Special Provisions as a submission requirement.

(ii) The Contractor shall initiate such other Quality Control procedures as are necessary for ensuring the production of a quality product and may include them in the Quality Control Plan submission.

(c) Initial Submission for Both Full and Partial Submissions – The initial QC Plan shall be submitted to the Ministry Representative a minimum of seven (7) days in advance of the Project pre-construction meeting or fourteen (14) days in advance of undertaking any Work on Site, whichever is earlier, and must provide details of all elements of Work anticipated to be undertaken within the Contractor's first thirty (30) days on Site.

This initial submission must provide complete detail of the QC methodology to be employed with respect to the following elements, regardless of when those tasks are anticipated to commence:

(i) All elements listed in SS 101.02.02

(ii) Traffic Management

(iii) Site Safety

(d) Subsequent Submissions for Both Full and Partial Submissions – Detailed submissions for the balance of the Work must be received:

(i) a minimum of fourteen (14) days prior to the anticipated first day of Work on each element covered by the submission; and

(ii) not later than 60 days after the earlier of the pre-construction meeting and the date the Contractor first occupied the Site.

(iii) Improved procedures may be introduced after the start of work as necessary as amendments to the Quality Control Plan. All amendments require the written acceptance of the Ministry Representative.

(iv) The type and frequency of QC tests shall be established by the Contractor and shall be in conformance with the requirements of the Contract, including the minimum frequencies specified in the Special Provisions and/or Standard Specifications (for those listed items applicable to the Work), and the current acceptable practice of the industry.

(v) When materials or equipment are specified by standard or performance specifications the Contractor shall obtain from suppliers or manufacturers independent test reports, or test certificates stating that the materials or equipment meet or exceed specified requirements. The Contractor shall provide back-up documentation of actual testing results upon request by the Ministry Representative.

(e) Submission Checklists – The initial submission, as well as any subsequent submission or revision, must be accompanied by the Contractor's QC checklist for Quality Management, verifying that the submission meets all relevant contractual requirements.

101.03 Ministry Quality Assurance – The Ministry may prepare and implement a Quality Assurance Plan, based in part on the effectiveness and reliability of the Contractor's Quality Control Plan. The Ministry may also undertake random and systematic inspections of the Work and of the Contractor's QC documentation.

The purpose of the QA Plan and inspectional activities is to ensure that payment is made only for acceptable works in place and may be based on a limited amount of sampling and testing.

The Ministry Representative will monitor the Contractor's operations and the Quality Control program to assure that standards are being met and to assess what payments have been earned under the terms of the Contract.

Any instances of Unacceptable Work discovered by either the Contractor or the Ministry may result in a Non-Conformance Report being issued to the Contractor.

The QA program activities will not relieve the Contractor of Quality Control responsibilities under the terms of the Contract.

The frequency of QA inspection and testing will generally be approximately zero to ten percent (0 – 10%) of the frequencies undertaken by the Contractor in its QC Plan and will initially be set at a level commensurate with the Ministry Representative's confidence in the anticipated effectiveness of the Contractor's QC program.

The Ministry Representative may increase or decrease the frequency of QA inspection and testing during the course of the Work, based in part on the actual effectiveness of the Contractor's QC Plan.

The Ministry's Quality Assurance may also include random and/or targeted quality audits.

101.04 Independent Quality Audit – The Ministry may have one or more independent auditors on the Project, supplementing the work of the Ministry QA staff. When utilized, the auditor(s) will report to the Ministry Representative and provide a systematic and independent assessment of whether or not the materials and Project activities and related results comply with the Contract, the Contractor's QC Plan, and the Ministry's QA Plan. These independent auditors may be Ministry employees but will be assigned from resources which have not otherwise been involved with the Work.

The objective of the independent Quality Auditing is to have an impartial opinion on both QC and QA activities and be proactive in avoiding or reducing quality related issues by requiring the process of conformance verification to be systematic.

The auditor(s) will be allowed unrestricted access to the Site and all activities therein, to all testing and documentation of the work done by the Ministry, Contractor and their agents and suppliers.

101.05 Non-Conformance Reports (NCRs) – The Contractor shall, and the Ministry may, review the Work to determine conformance with the contractual requirements.

Non-conformances found shall be dealt with as follows.

101.05.01 Contractor's Internal NCR – Should the Contractor's QC reporting indicate that the Work is not in conformance, the QC Manager shall issue an internal Non-Conformance Report (NCR) to the Contractor, with a copy to the Ministry, including a response time.

The Contractor shall then respond to the QC Manager, with a copy to the Ministry Representative, with respect to the NCR, within the specified time, with proposed resolutions and corrective actions and/or preventative actions, including whether or not a Stop Work order is warranted for the affected Work. The Contractor and/or the QC Manager may consult with the Ministry Representative on the resolutions but is not required to do so.

Payment for a Quality Management will not be affected by internal NCRs, as long as the issue is diligently pursued and resolved.

Payment for the Work itself may be withheld until the NCR issue is resolved.

101.05.02 Ministry-Issued NCR – Should the Ministry's QA or oversight reporting indicate that the Work is not in conformance, or that the Contractor has failed to address an internal NCR within a reasonable period of time, the Ministry Representative may issue to the Contractor a NCR, including a response time. Where appropriate, the Ministry may issue two NCR's related to a single issue – one for the product itself, and the other for the Contractor's failure to perform Quality Management.

The Contractor shall then respond to that NCR, within the specified time, with proposed resolutions and corrective actions.

The Ministry Representative will accept or reject the proposed resolution and corrective action proposal.

Assurance testing and inspection will be performed to determine if the corrective action has provided an acceptable product. Acceptance and rejection will continue until the Ministry Representative determines that a quality product has been achieved.

A portion of the payment for a Quality Management may be withheld until the NCR issue is resolved or, in accordance with SS 101.08, may be withheld permanently.

Payment for the Work itself may be withheld until the NCR issue is resolved.

101.05.03 Opportunity for Improvement – Should the QA or oversight review indicate that the Work is not in conformance, but the variance is deemed minor by the Ministry Representative, the Ministry Representative may issue an Opportunity for Improvement (OFI) report.

The Contractor is encouraged to review the findings and undertake such modifications to the QC Plan and the work procedures as necessary to address the issue.

An OFI will not affect payment for Quality Management or for the Work itself.

101.05.04 Stop Work Order – Should the Ministry Representative determine that the non-conformance is significant, the Ministry Representative may issue a Stop Work Order. A Ministry-issued Stop Work Order may be appealed by the Contractor under SS 101.06 but shall not cause a Notice of Dispute.

101.06 Appeal – If the Contractor disputes the validity of any testing or inspection finding in an NCR, the Contractor may file an appeal with the Ministry Representative. An appeal under this SS 101.06 is available only for issues of assessing compliance of a material, product or process against the requirements of the Contract, and not any decision the Ministry may make regarding rectification of the non-compliance.

The Ministry Representative and the Contractor Representative will use all reasonable efforts to refine the area of dispute and to resolve the determination of conformance with the Contract.

If the Ministry Representative and the Contractor Representative cannot come to a mutually agreeable resolution, the Work that is the subject of the Non-Conformance Report shall be re-evaluated by an independent third-party, selected by the Ministry Representative in consultation with the Contractor.

If the appeal is of test results, the work in question shall be retested at a test frequency equivalent to twice that specified in the Contract or to such other frequency as may be mutually agreed between the Ministry Representative and the Contractor.

If the appeal relates to an inspection, the work in question shall be fully re-evaluated for strict compliance with all applicable terms of the Contract.

The specific retest or reinspection locations shall be determined by the Ministry Representative, in consultation with the Contractor and the independent third-party.

If the appeal confirms the non-conformance determination, all appeal testing and inspection costs will be borne by the Contractor. If the appeal shows that the Work did in fact meet the requirements of the Contract, all appeal testing and inspection costs will be borne by the Ministry.

101.07 Payment – The Lump Sum Price bid for Quality Management shall be full compensation for all costs resulting from the Quality Management requirements set out in the Contract.

Payment will be made on a monthly basis prorated for the percentage of the total Work completed as determined by the Ministry Representative, subject to the Contractor being totally compliant with the requirements of this Section and with its own Quality Control Plan.

101.08 Withholding Payment – The Ministry Representative, in consultation with a Ministry construction manager following the issuance of a Ministry-issued NCR pursuant to SS 101.05.02, may deduct an amount from any monthly payment so computed, for any quality management work required but not satisfactorily undertaken during that month.

The Ministry Representative may also reduce the total Lump Sum payable by the value of any quality management work required but not satisfactorily undertaken during the Term of the Contract. The foregoing determinations will be made in the sole discretion of the Ministry Representative. When the value bid for the Quality Management Item is insufficient to cover the payment reductions, the Ministry Representative may recover the reductions as a back charge against a Site Modifications Item or any other Item in the Contract.

Inspection or testing by the Ministry Representative will be at the Ministry's cost. However, re-inspection or re-testing by the Ministry for repaired or replaced Work items that originally did not meet contract requirements shall be at the Contractor's cost.

Work that is deemed Unacceptable Work will not be eligible for payment.

The Completion Certificate will not be issued if there are any unresolved Non-Conformance Reports.

SECTION 108
SAMPLE FORMS

GENERAL

108.01 General – This Section provides sample copies of forms which the Contractor may be required to execute and submit to the Ministry in accordance with the Contract. Blank copies of these forms are available from the Ministry Representative.

STATUTORY DECLARATIONS

108.11 Major Works – Final Progress Payment and Interim Holdback Release – The form attached as APPENDIX 108-A (Ministry form H0394A) is used to meet the Statutory Declaration requirements of the Major Works General Conditions where the final progress payment or interim holdback release is to be paid by the Ministry to the Contractor.

108.12 Major Works, Minor Works and Operational Services – Holdback or Security Release – The form attached as APPENDIX 108-B (Ministry form H0394F) is used to meet the Statutory Declaration requirements of the Major Works or Minor Works General Conditions or the Operational Services Contract where final holdback amounts or security (in a form other than a bond) are to be released by the Ministry.

MINISTRY FORMS

108.13 Ministry Forms – Electronic copies of many Ministry forms (including the Statutory Declarations noted above and most forms with an "H-" prefix) are publicly available on the following website:

https://www.th.gov.bc.ca/forms/search.aspx

APPENDIX 108-A – MAJOR WORKS

FINAL PROGRESS PAYMENT / INTERIM HOLDBACK RELEASE

BRITISH COLUMBIA | Ministry of Transportation and Infrastructure

APPENDIX A – MAJOR WORKS
FINAL PROGRESS PAYMENT / INTERIM HOLDBACK RELEASE

IN THE MATTER OF THE EVIDENCE ACT, 1996 RSBC c.124 AND IN THE MATTER OF CERTAIN DISBURSEMENTS TO BE MADE IN CONNECTION WITH THE CONTRACT

dated the _____ day of _____, _____ between:

HIS MAJESTY THE KING IN RIGHT OF THE PROVINCE OF BRITISH COLUMBIA, AS REPRESENTED BY THE MINISTER OF TRANSPORTATION AND INFRASTRUCTURE
(the Province)

and:

_____

_____

_____

(the Contractor)

pertaining to Project Number _____ Contract ID _____
the "Project" the "Contract"

I, _____, being a
(PRINT OR TYPE FULL NAME AND POSITION OR TITLE)

duly authorized representative of and agent for the Contractor on the above-referenced Project do solemnly declare and attest that,

i. all of the Contractor's obligations under the Contract arising as of this date have been performed;

ii. all accounts for labour, subcontracts, products, materials, construction machinery, equipment and any other indebtedness and obligations which may have been incurred by the Contractor in connection with the Project and/or the Contract up to the date the immediately preceding progress estimate have been paid in full or remain in good standing; and

iii. I have the knowledge and information and have conducted all such enquiries necessary to enable me to make this statutory declaration.

I MAKE THESE SOLEMN DECLARATIONS, conscientiously believing them to be true and knowing that they are of the same legal force and effect as if made under Oath.

DECLARED BEFORE ME AT THE

_____

of _____, in the

Province of British Columbia, on this

_____ day of _____, _____

_____
A Commissioner for taking Affidavits for British Columbia

_____
Signature of Contractor's Authorized Representative

STATUTORY DECLARATION
H0394A (2022/09/23)

SAMPLE

APPENDIX 108-B – HOLDBACK / SECURITY RELEASE

BRITISH COLUMBIA | Ministry of Transportation and Infrastructure

APPENDIX B – HOLDBACK/SECURITY RELEASE STATUTORY DECLARATION

SAMPLE

IN THE MATTER OF THE EVIDENCE ACT, 1996 RSBC c.124 AND IN THE MATTER OF CERTAIN DISBURSEMENTS MADE IN CONNECTION WITH THE CONTRACT

dated the _____ day of _____ , _____ between:

HIS MAJESTY THE KING IN RIGHT OF THE PROVINCE OF BRITISH COLUMBIA, AS REPRESENTED BY THE MINISTER OF TRANSPORTATION AND INFRASTRUCTURE
(the Province)

and:

_____
_____
_____
(the Contractor)

pertaining to Project Number _____ Contract ID _____
the "Project" the "Contract"

I, _____ , being a
(PRINT OR TYPE FULL NAME AND POSITION OR TITLE)

duly authorized representative of and agent for the Contractor do solemnly declare and attest that,

i. all of the Contractor's obligations under the Contract have been performed as of this date and;

ii. I have the knowledge and information and have conducted all such enquiries necessary to enable me to make this statutory declaration.

I MAKE THIS SOLEMN DECLARATION, conscientiously believing it to be true and knowing that it is of the same legal force and effect as if made under Oath.

DECLARED BEFORE ME AT THE

_____

of _____ , in the Province of British Columbia, on this

_____ day of _____ , _____

_____
A Commissioner for taking Affidavits for British Columbia

_____
Signature of Contractor's Authorized Representative

STATUTORY DECLARATION MAJOR & MINOR WORKS / OPERATIONAL SERVICES – HOLDBACK /SECURITY RELEASE
H0394F (2022/09/23)

SECTION 125

VALUE ENGINEERING PROPOSALS

125.01 Definitions

(a) **VEP** means a value engineering proposal which has been set out in writing by the Contractor to the Ministry in accordance with these guidelines.

(b) **Summary VEP** means a brief summary of a VEP, including the anticipated cost and timing of developing the VEP, submitted by the Contractor to the Ministry.

(c) **Implemented VEP** means a value engineering proposal which has been accepted and implemented by means of a Supplemental Agreement or Work Order.

(d) **Net Cost Savings** means an amount determined by the Ministry on the basis of the Contract Price before implementation of the VEP minus the adjusted Contract Price determined after the implementation of the VEP less the following costs, which are subject to negotiation:

(i) the Contractor's costs of developing the VEP;

(ii) the Ministry's costs of evaluating the VEP; and

(iii) the anticipated additional administration, engineering, quality management, and project management costs to the Ministry resulting from the implementation of the VEP.

(e) **Value Engineering Incentive** means an amount calculated pursuant to written agreement between the Ministry and the Contractor, which will generally be equal to fifty percent (50%) of the Net Cost Savings realized by the Ministry due to the implementation of the VEP.

125.02 Guiding Principles for VEP Evaluation

125.02.01 Tangible Benefits to the Ministry – To be considered, a VEP must be perceived by the Ministry to provide a tangible benefit to the Ministry, such as:

(a) a reduction in the total cost of the Project; or

(b) an improvement to the product which the Ministry expects will reduce the life cycle costs; or

(c) a change in the Construction Schedule which will be beneficial to the Ministry; or

(d) a reduction or transfer of risk which will benefit the Ministry;

and should result in a product which is functionally equal or superior to that which would result in the absence of the VEP.

125.02.02 Exclusions from VEPs – A VEP should not:

(a) impair the functionality and characteristics of the Project, including, but not limited to, the service life, economy of operation, ease of maintenance, aesthetic considerations, preliminary engineering commitments, or design and safety standards.

(b) be similar to a change in the Drawings or specifications under consideration by the Ministry for the Work at the time the VEP is submitted to the Ministry.

(c) increase the anticipated life cycle costs of the Project.

(d) seek a variance to the Contract for an existing non-conforming product. Non-conforming Work cannot be made acceptable using this VEP process.

125.02.03 VEP Design Basis – To be eligible for a Value Engineering Incentive, a VEP must propose a change to the Work which meets the same constraints, assumptions and considerations as those which governed the original design of the Work, as it is defined in the Agreement. Where Changed Conditions, or other changes, have occurred and have already created the need for a Change To Work, a VEP which responds to this need will not normally be eligible for a Value Engineering Incentive, and in any case will be eligible only for a reduced incentive.

125.02.04 VEP Aspects – A VEP may involve:

(a) a material or product substitution.

(b) a change to the Work method.

(c) a Work sequencing change, including changes to traffic routing or detour sequences, changes to structure or roadway construction sequences.

(d) a change to the design or engineering of the Project which provides a marked departure from the product as defined in the Contract Document Package.

125.02.05 Contract Variances – Any request by the Contractor for a design change, or a substitution of material or method, will only be considered if submitted as a VEP.

125.03 Value Engineering Proposal Submissions

125.03.01 Summary VEP – Prior to presenting a VEP, the Contractor will prepare a Summary VEP and submit it to the Ministry for consideration.

125.03.02 Summary VEP Evaluation by the Ministry – The Ministry will evaluate the Summary VEP and will advise the Contractor whether or not the Ministry would be willing to consider, without obligation, the VEP described in the Summary VEP.

125.03.03 Content of VEP Summary – A VEP should contain the following information:

(a) a statement that the proposal is submitted as a VEP.

(b) a detailed description of the VEP and the manner in which the VEP should be implemented (by Supplemental Agreement or Work Order).

(c) a detailed description of the Items and quantities, Drawings, specifications, designs, Completion Date, Milestone Dates or other elements under the Agreement which would be changed, altered, modified or replaced by the implementation of the VEP.

(d) plans and working drawings needed to analyze the VEP and determine the impact of the VEP on the Project.

(e) An assessment of any quality assurance reviews that would be in addition to or of a different nature than those the Ministry would typically perform on the original design.

(f) an itemized cost analysis of the Net Cost Savings.

(g) the date, which must be not less than two weeks after the date of the VEP, by which the VEP must be implemented in order to maximize the cost reduction during the remainder of the Agreement.

125.04 Implementation of a VEP

125.04.01 Formalization of an Approved VEP – For those VEPs approved by the Ministry, the Ministry Representative will prepare a Supplemental Agreement or a Work Order which will set out the Net Cost Savings, the Change to Work required realizing the Net Cost Savings, and the adjustment to the Contract Price(s) and payment terms resulting from the VEP, in accordance with these guidelines.

125.04.02 Ministry Rights-of-Use – The Ministry will retain the right to utilize a VEP, or part thereof that has been accepted for the Project, on any other or subsequent projects without any obligation to the Contractor, unless the Contractor has provided written notice in the Summary VEP and the VEP regarding patented materials or processes involved in the VEP.

125.04.03 Investigations and Studies – The Contractor shall provide and be responsible for all investigations and studies required for the development and implementation of the VEP.

125.04.04 VEP Execution Terms and Specifications – Unless the parties agree otherwise, all Works associated with the VEP shall be executed in accordance with the terms and conditions of the Ministry's Design Build Minor General Conditions and the Design Build Standard Specifications for Highway Construction (inclusive of any amendments). The Contractor shall also provide additional insurance in accordance with INS-172, including without limitation Professional Liability Insurance and Wrap-Up CGL insurance, for the Works associated with the VEP.

125.04.05 Associated Technical Circulars – The Contractor will, for all engineering works required for each implemented VEP:

(a) cause their engineer(s) or other registered professional(s) to be responsible for all engineering and field reviews required for the Work included in, or affected by, the VEP;

(b) comply with the requirements of Ministry Technical Circular T-01/23 "Professional Assurance Guidelines", or any update or replacement thereof, including, without limitation, identifying Engineers of Record, Professionals of Record, Field Reviewers, and, if appropriate, a Coordinating Professional Engineer or Coordinating Registered Professional, and submitting all related letters of assurance to the Ministry Representative;

https://www2.gov.bc.ca/assets/gov/driving-and-transportation/transportation-infrastructure/engineering-standards-and-guidelines/technical-circulars/2023/t01-23.pdf

(c) coordinate with the Coordinating Professional Engineer or Coordinating Registered Professional responsible for the original design as tendered by the Ministry to ensure that all aspects of engineering between the original design and the VEP are covered by the Contractor's engineers; and

(d) provide to the Ministry Representative complete signed and sealed record drawings, electronically and in original hard copy, prepared in accordance with Ministry Technical Circular T-07/09 "Record Drawings Amended April 2010" or any update or replacement thereof.

https://www2.gov.bc.ca/assets/gov/driving-and-transportation/transportation-infrastructure/engineering-standards-and-guidelines/technical-circulars/2009/t07-09b.pdf

SECTION 135
CONSTRUCTION SITE SAFETY

135.01 General – This Section describes the responsibilities of the Contractor for safety on the Site.

Virtually every Ministry project will occur on a "multiple employer worksite", by virtue of the Contractor retaining Subcontractors, by the Ministry having retained other independent contractors to work on or near the Site, by the Ministry Representative having forces on-Site, or through utilities, municipalities or other entities performing work on the Site.

Under the Workers Compensation Act and Regulation, each of these parties has responsibilities as an "employer" and may have responsibilities as a "prime contractor" for other employers working on the Site.

In any area where the operations of the various parties overlap or otherwise affects the others, one of those parties will be designated by the Ministry as the Prime Contractor, and, as laid out in this Section and the Workers Compensation Act and Regulation, will have responsibility for the overall co-ordination of safety in assigned Area(s) of Responsibility.

Where the Contractor takes on the role of Prime Contractor, it continues to have the responsibilities of the Contractor and adds those of the Prime Contractor, each as described in this Section.

Where the Contractor is not the Prime Contractor, but is working on a Site which is under the co-ordination of a Prime Contractor designated by the Ministry, they will be responsible for co-operating with the Prime Contractor as described in this Section.

135.02 "Site" vs "Area of Responsibility – The distinction between the geographic areas of the "Site" (where the Contractor is to build something under the terms of the Contract) and the "Area of Responsibility" (where the Contractor or another party is responsible for health and safety issues) is important.

135.03 Definitions – In this Section, except as otherwise expressly provided herein:

(a) Adjacent or Nearby Worksite is a multiple employer workplace described by another Ministry contract, or in a written notice that may be issued by a Ministry Representative, and/or as described in a Notice of Project, for which another party has been engaged as prime contractor but which may be entered for the purposes of the Contract by the Workers, Suppliers and Subcontractors of the Contractor.

(b) Area(s) of Responsibility ("AoR") means one or more Multiple Employer Workplaces so designated in writing by the Ministry, comprised of the Site including additional area(s) outside the Site or excluding area(s) within the Site, which is to be reflected in the Notice of Project.

(c) AoR-Specific Safety Plan is a companion document to a Base Safety Plan which identifies specific hazards or conditions affecting an Area of Responsibility and designates protocols for mitigation and response for a specific project, consistent with the requirements of the Workers Compensation Act and the Regulation.

(d) Base Safety Program means the occupational health and safety program that the Prime Contractor will initiate and maintain within its assigned Area(s) of Responsibility, all as described in this Section.

(e) Employer means an employer as defined in the Workers Compensation Act, and includes the Contractor.

(f) Incident means an accident, Near Miss, or other occurrence which resulted in or had the potential for causing an injury, occupational disease, or property damage.

(g) Joint Committee means the joint health and safety committee that shall be established and maintained by the Prime Contractor in compliance with the Workers Compensation Act and the Regulation (see also "Other Joint Committees").

(h) Multiple Employer Workplace means, in accordance with the Workers Compensation Act and the Regulation, a workplace where workers of 2 (two) or more Employers are working at the same time.

(i) Near Miss means any event that occurred which had the potential to cause injury or property damage but did not.

(j) Notice of Project means the notice of project described in Part 20 of the Regulation.

(k) Notice of Unsafe or Harmful Condition or Act means the written notice that the Contractor will deliver to any Employer, or other persons, pursuant to SS 135.08, in the form set out in APPENDIX 135-A.

(l) Other Authorized Party means any entity, other than the Prime Contractor or Contractor, who has a direct agreement with the Ministry and may therefore have contractual obligations to the Ministry and/or the Prime Contractor with respect to health and safety issues on the Site or Area of Responsibility. Such Other Authorized Parties may include but not be limited to, another construction contractor, a Ministry maintenance contractor, a utility company, a permittee or a licencee.

(m) Other Joint Committees means additional committees that may be established by the Contractor in compliance with the Workers Compensation Act and the Regulation.

(n) Other Persons means any entity, who is not the Prime Contractor, Contractor or an Other Authorized Party, who, for whatever reason or purpose, are on the Site or Area of Responsibility and do not have contractual responsibilities to the Ministry or the Prime Contractor. As examples, such Other Persons would include, but not be limited to, the public, the RCMP, and WorkSafe BC.

(o) Prime Contractor means a prime contractor as defined in Section 13 of the Workers Compensation Act, and Part 20 of the Regulation.

(p) Qualified Coordinator means the person, who meets the qualifications of a qualified coordinator described in the Regulation, and who is appointed by the Prime Contractor to discharge for the Area of Responsibility, the responsibilities of a qualified coordinator as described in the Workers Compensation Act and the Regulation.

(q) Qualified Person means the person who meets the qualifications of a qualified person described in the Workers Compensation Act and the Regulation, and who is designated by the Contractor to discharge for the Site the responsibilities of a qualified person as described in the Workers Compensation Act and the Regulation.

(r) Regulation means the British Columbia Regulation 296/97 entitled *Occupational Health and Safety Regulation* prescribed under the Workers Compensation Act, as amended from time to time.

(s) Safety Requirements means the compendium of all requirements related to health and safety applicable to the Work, including without limitation, the Workers Compensation Act, the Occupational Health and Safety Regulation, the Mines Act, the Health, Safety and Reclamation Code for Mines in British Columbia, the Base Safety Program, the AoR-Specific Safety Plan(s), the Traffic Management Manual, the Contract, and this SS 135.

(t) Traffic Management Manual ["TMM"] means the current edition of the *Traffic Management Manual for Work on Roadways*, as published by the Ministry and including all amendments, available for download from

https://www2.gov.bc.ca/gov/content/transportation/transportation-infrastructure/engineering-standards-guidelines/traffic-engineering-safety/trafficmanagementmanual/2020trafficmanagementmanual

(u) Workers mean the employees, workers, servants, agents or invitees of Employers, including of the Contractor, at the Site.

(v) Workers Compensation Act means the Workers Compensation Act, R.S.B.C. 2019, c.1 as amended from time to time.

(w) Workers' Compensation Board ("WCB" or "WorkSafeBC") means the Workers' Compensation Board constituted under the Workers Compensation Act.

135.04 Ministry

135.04.01 Designation of Area(s) of Responsibility – The Ministry may designate one or more Areas of Responsibility, each with a single Prime Contractor.

135.04.02 Appointment of Prime Contractor – The Ministry may, in its sole discretion, appoint in writing:

(a) the Contractor,

(b) a party other than the Contractor, or

(c) the Ministry

to be the Prime Contractor for one or more Areas of Responsibility and will notify the Contractor in writing of that appointment.

135.04.03 Changes – The Ministry may at any time, in its sole discretion and in writing, change or revoke any appointment of the Prime Contractor or designation of any Area of Responsibility.

135.04.04 Designation Content – Any designation or appointment made pursuant to SS 135.04.01 to SS 135.04.03 will include:

(a) a description of the geographic Area of Responsibility, and

(b) the time and date, or condition, that the designation or appointment comes into effect.

135.04.05 No Implied Approval – Receipt and retention by the Ministry of the information and documentation listed in this Section in no way constitutes approval of or authorization of the form, content or adequacy of such information and documentation on the part of the Ministry.

135.05 Prime Contractor

135.05.01 Acknowledgement of Assignment as Prime Contractor – Upon notification of such appointment, the Contractor shall deliver written confirmation to the Ministry of its acknowledgement to being the Prime Contractor for the Area of Responsibility.

135.05.02 Prime Contractor Responsibilities – The Prime Contractor shall, for each assigned Area of Responsibility:

(a) ensure that all required Notices of Project have been prepared, accurately reflect the Area of Responsibility and Prime Contractor assignment, are submitted to the Workers' Compensation Board and are posted within the Area of Responsibility,

(b) at the sole cost of the Prime Contractor, provide, post and maintain 2 (two) signs, in accordance with the specifications, which contain the informational messaging stipulated in Drawing SP135-01 of this